

ATTENDANCE:

BOARD Pam Robb, Chair
Elliot Abrams, Vice-Chair
Daniel Trevino, Supervisor
Betsy Whitman, Supervisor
Sultan Magruder, Supervisor

STAFF Doug Erickson, Township Manager
Alexandra Castrechini, Director of EPZ/Twp Engineer
Lawrence Pegher, Finance Director
Tyler Jolley, Chief of Police
Ken Soder, Director of Public Works Ops
Betsy Dupuis, Solicitor (via tele-conference)
Susan Wheeler, Project Manager

AUDIENCE C-Net (2)
Bob Poole, Toftrees Resort
Tony Fruchtl, Penn Terra Eng.
Jim Payne, Planning Commission
Eric Norenberg, COG

Nate McCulloch, WCG
Leroy Kline, Delta Development
Alicia Cornali, S&A Homes
Bob Prosek, Planning Commission
Joe Vigilione, COG

1. CALL TO ORDER

Ms. Robb called to order the August 17, 2022, Board of Supervisors Meeting at 5:30PM.

a. Announcements

1) The Board of Supervisors meet in Executive Session on August 12th with the Director of Finance and Administration, the Solicitor and Labor Counsel to review a draft agreement on the collective bargaining agreement with the Township's Police Officers Association. See Item 4b for further information.

2) Moved Item 6b up to after 3b.

b. Pledge of Allegiance – as you are able, please rise and join the Board in the Pledge

c. Additions to the Posted Agenda – None.

2. PUBLIC COMMENTS

There were no public comments.

3. PRESENTATIONS / PUBLIC HEARINGS**a. Resolutions of Support****1) Suicide Awareness and Prevention Month/Day**

Mr. Erickson stated that the Centre County Suicide Prevention Task Force has again requested support for designating September as Suicide Awareness and Prevention Month and September 10th as Suicide Awareness and Prevention Day.

Ms. Whitman moved to approve Resolution 2022-016 designating September as Suicide Awareness and Prevention Month and September 10th as Suicide Awareness and Prevention Day. Seconded by Mr. Trevino, the motion passed 5-0.

3. PRESENTATIONS / PUBLIC HEARINGS (CONTINUED)

a. Resolutions of Support (CONTINUED)

2) Firearms Safety

Mr. Erickson stated that Supervisor Robb requests the Board consider supporting a Resolution supporting the prevention of gun violence and safe and secure firearm storage initiatives.

Chief Jolley stated that we participate in Project Child Safe and that there are gun locks available at the township building free for residents who need them.

Mr. Abrams moved to approve Resolution 2022-017 to the prevention of gun violence and safe and secure firearm storage initiatives. Seconded by Mr. Trevino, passed 5-0.

b. Grant Sponsorships for Toftrees Resort Redevelopment

Mr. Erickson stated he has been working with the Toftrees Resort ownership group and Delta Development to submit two grant applications in joint support of the re-development of the Resort and long-needed upgrades to Toftrees Avenue. This proposed partnership is quite similar to the one we used for the development of the Nittany Valley Sports Center and the improvements to the Fox Hill Road / Bernel Road intersection.

For the Resort, the Township would be the sponsor for a Redevelopment Assistance Capital Program (RACP – pronounced 'Rack-P') in the amount of \$2,500,000 for site work and/or demolition. This grant is administered by the Office of the Budget for "the acquisition and construction of regional economic, cultural, civic, recreational, and historical improvement projects." There is no required Township match or funding required for this grant. The Township will enter into an Cooperation Agreement with the resort owners that protects the Township from any financial liability arising from the project. That agreement will be finalized after the grant is awarded. The application deadline is August 19th.

For the Toftrees Avenue Corridor, the Township will be the applicant for a Multi-modal Transportation Fund I(MTF) grant through the Commonwealth Finance Authority (CFA) and the state Department of Community and Economic Development (DCED). In 2021 the Township completed preliminary planning for upgrades to the Toftrees corridor and identified a 4 phase program for the work. This grant application would cover Phase 1A and a portion of Phase 1B (the resort entrance). The request is for a \$2,159,000 grant to be matched by \$514,000 in Township funds. The Township funding was previously programed in our Capital Improvement Plan for this project in 2023 and 2024.

Specifically, the MTF grant funding will cover:

- Replacement/upgrade of large culverts near Waddle Road intersection
- Provide new sidewalk, with lighting, for safe pedestrian travel from Waddle Road
- Combining the golf cart crossing and rail-trail crossing into a single location and provide safety upgrades to include a median and flashing beacons.
- Reconstruction of Resort entrance to correct sight-distance deficiency and slope problems.

The above work is all necessary prior to completing the actual roadway upgrades in the next Phase of the project. The grant application was submitted with the Manager's approval on the July 30th deadline.

Please note that the owners will need to take a Land Development Plan through the plan approval

3. PRESENTATIONS / PUBLIC HEARINGS (CONTINUED)

b. Grant Sponsorships for Toftrees Resort Redevelopment (CONTINUED)

process with the Planning Commission and Board prior to beginning any work on the Resort re-development.

Mr. Kline gave a brief overview of the Toftrees Resort Redevelopment.

Mr. Abrams moved to approve Resolution 2022-019 for application of MTF-CFA grant and approve sponsorship for the RACP grant. Seconded by Ms. Whitman, the motion passed 5-0.

c. Scotia Road Shared Use Path Connector – Alternatives Analysis

Ms. Wheeler stated that the Engineering, Planning and Zoning Department engaged the Wilson Consulting Group (Wilson) to look at alternatives to provide a bicycle/pedestrian connection between the Circleville Road Bike Path and the Grays Woods Boulevard Shared Use Path (SUP). Wilson collected data for the identification and study of at least 3 alternates for the desired connection. Wilson met with the Recreation Advisory Committee (RAC) and staff and held two meetings with the general public to gain input.

At the July RAC meeting, Mr. Nate McCulloch of Wilson presented a summary of three identified alternatives and a summary of the survey data and estimated costs. Mr. McCulloch indicated that of the three scenarios Alternate 2 was the most desired and the most practical.

The Recreation Advisory Committee recommends that the Board of Supervisors designate Alternate 2 as the preferred alternate for the Scotia Road Shared Use Path connector and that the township proceed with engineering design in 2023 and that staff begin seeking grant funding for construction of the project in 2024. (See Item 3c.0)

The attached agenda materials included:

- Concept Plans and Comment Summary for Alternates 1 through 3 (Items 3c.1, 3c.2 and 3c.3 respectively)
- Summary of all comments and survey responses (Item 3c.4)
- Project Summary for Parks-8 from the 2022-2026 CIP (Item 3c.5)

Mr. McCulloch gave a brief overview of the Scotia Road Shared Use Path Connector – Alternatives Analysis.

The Board agreed to the following:

1. Update the project narrative and budget for the CIP and the 2023 Budget specifying Alternate 2 as the preferred alignment.
2. Begin outreach to impacted property owners on right-of-way needs

4. PUBLIC SAFETY

a. July 2022 Public Safety Report

Chief Jolley gave a brief overview of the July 2022 Public Safety Report that was included with the agenda materials.

This report is for information only.

4. PUBLIC SAFETY (CONTINUED)

b. 2023 – 2026 Collective Bargaining Agreement (CBA) with the Patton Township Police Officers Association (POA)

Mr. Pegher stated that negotiations on a four-year agreement have concluded. The proposed agreement is included with the agenda materials.

Changes included in the new agreement include;

- Term of the Contract is 4 years
- Annual raises of 6% in 2023, 5% in 2024, 4% per year in 2025 and 2026
- Dental Reimbursement increase by \$200 per level in 2023 and \$100 per level per year in 2024 through 2026.
- Vision Reimbursement increase to exam allowance of \$200 and hardware allowance of \$400
- Decrease in annual step of starting salary from 8% to 7%
- Add Juneteenth as a holiday
- Increase pension basis from base salary to base salary plus \$5,000

Mr. Trevino asked about the non-uniform employees. Mr. Pegher stated that this will be discussed with the manager and a recommendation will be forthcoming.

Mr. Abrams moved to approve the 2023-2026 Collective Bargaining Agreement with the Patton Township Police Officers Association (POA). Seconded by Mr. Trevino, the motion passed 5-0.

5. PUBLIC WORKS OPERATIONS – no items

6. ENGINEERING, PLANNING, AND ZONING

a. Planning Commission Report

Mrs. Castrechini gave a brief overview of the activities of the Planning Commission.

b. Land Development Plan; Patton Crossing – Phase 2

Phase 2 of the Patton Crossing Master Plan is located at 1752 North Atherton St in the C-2 (Planned Commercial) zone with the MXD-2 (Mixed Use Overlay 2) district. The first floor of Building C will provide retail banking services. Office space will be located on the second floor.

Phase 1, Aldi, was approved in 2020. The Phase 2 plan generally conforms to the Patton Crossing Master Plan which was approved in 2019.

Construction activities are proposed to begin in Fall 2022 with a duration of 1 year.

New Building

- Building “C” – Centre 1st Bank: 9,036 square-feet, three drive-thru lanes, 53 parking spaces (4 ADA)

Proposed Infrastructure

- Improvements to Atherton/ Woodycrest intersection:
 - o Extend left turn lane into site
 - o Create right turn lane at Northwest Savings bank
 - o Complete traffic signal upgrades
- New internal road construction – Roxbury Street: – on easterly side with right in/right out movements only to Atherton Street.

6. ENGINEERING, PLANNING, AND ZONING (CONTINUED)

b. Land Development Plan; Patton Crossing – Phase 2 (CONTINUED)

- Stormwater
- New cast-in-place retaining wall facing North Atherton Street, like Phase 1, with cable guiderail installed in parking area in front of retaining wall
- New sidewalks throughout the site
- Construction of Basin 2 which is a combined underground and above-ground storage facility. The footprint of the above-ground basin shall be expanded as future phases of development are proposed.

The Planning Commission reviewed the plan at their August 1st meeting and recommended conditional approval with:

- Completion of all items noted on each comment letter provided by staff.
- Inclusion of bicycle parking for Building C per the MXD2 Overlay regulations –
Short-term Bicycle Parking – 1 per 20,000 sf of floor area
Long-term Bicycle Parking – 1 per 10,000 sf of floor area

The following items were included with the agenda materials (Item 6b):

- Location Map
- Patton Township Staff Plan Review Comments
- Plan Review Comments from PennDOT, Alpha Fire Company, and COG Refuse and Recycling
- Master Plan and Phasing Plan Sheets from Master Plan
- Land Development Plan Set (partial)

Mr. Fructl gave a brief overview of the Land Development Plan; Patton Crossing – Phase 2.

Ms. Whitman moved to conditionally approve the Development Plan; Patton Crossing – Phase 2.
Seconded by Mr. Abrams, the motion passed 5-0.

c. Mobility Share Program Agreement for E-Bikes

Ms. Wheeler stated that In 2021, Penn State partnered with the Borough of State College and Spin, a San Francisco-based micro-mobility unit of Tier Mobility, to offer the Penn State and State College Borough communities a new bike-share program. Spin's electric-assist bike (e-bike) program has a fleet of 300 e-bikes that can travel within Penn State and parts of the State College Borough. Spin e-bikes have a maximum electric-assist speed of 20 miles per hour (mph) with the speed being capped at 15 mph on campus. Speeds are automatically capped based on geofenced speed zones (similar to how no-ride and parking zones in the program are applied). The e-bikes are available 24 hours a day, seven days a week. Rental fees apply for e-bike use. E-bikes cannot be ridden outside the current service area. If an e-bike attempts to exit the boundary of the geofence, the e-bike stops working.

The Recreation Advisory Committee (RAC) is interested in expanding the Spin e-bike program along the Bellefonte Central Rail Trail (BCRT) into the Toftrees area. This expansion could provide an alternative, sustainable transportation alternative for township residents. The Recreation Advisory Committee unanimously makes the following recommendations to the Board of Supervisors:

- That Patton Township should enter into an agreement with Spin (see Item 6c.1), and the first e-bike connector route into the township will be the corridor along the (BCRT) into the high-density apartment area between I-99 and Toftrees Ave (red shaded area of attachment Item 6c.2)

6. ENGINEERING, PLANNING, AND ZONING (CONTINUED)

c. Mobility Share Program Agreement for E-Bikes (CONTINUED)

- Further, it will be the task of the RAC to study, identify and recommend any new connectors/expansions into the township to the Board of Supervisors for their final approval.

Mr. Trevino suggested an expansion to Vairo and other areas.

Mr. Magruder agrees with expanding to other areas.

Mr. Trevino moved to approve the proposed Micromobility Share Plan Agreement. Seconded by Ms. Whitman, the motion passed 5-0.

7. ADMINISTRATION

a. Financial Trends Monitoring

The Financial Trends Monitoring System is a look at indicators of the financial stability and sustainability for the delivery of Township services to our residents and businesses.

Mr. Pegher gave a brief overview of the Financial Trends Monitoring.

The 2011 to 2021 Financial Trends Monitoring System Report was included with the agenda materials. (Item 7a.1) A summary of each measure studied (last 4 pages of the report) is included as a separate attachment to the e-agenda. (Item 7a.2) The presentation slides are included in the Updated Agenda as Item 7a.3.

No formal action is required on this item.

b. Mid-Year Financial Report

Mr. Pegher provided an update on the Township's financial position based on revenues and expenditures from the first six months of the year and projected revenues and expenditures through the end of the year.

A memo from the Director (Item 7b.1) and a spreadsheet showing year-to-date revenues and expenses compared to budgeted amounts (Item 7b.2) was included with the agenda materials. The presentation slides are included in the Updated Agenda as Item 7b.3.

This item is for information only. No Board action is required.

c. Disposition of American Rescue Plan Funds

Mr. Erickson stated that the Township has reported to the US Treasury that we have designated the American Rescue Plan funds received are considered to be Revenue Replacement as permitted under the Act. These funds can be used for "government services" that include "any service traditionally provided by a government." US Treasury has further clarified that this includes payroll expenses for providing services such as public safety, roadway/infrastructure maintenance, and administrative services. (see attachment Item 7c.2)

7. ADMINISTRATION (Continued)

c. Disposition of American Rescue Plan Funds (Continued)

The Manager recommends that the Board should explicitly obligate the funds at this time and further recommends that the funds be used for payroll costs across all Township departments in the following budget years:

2022 - \$500,000	2023 - \$500,000	2024 - \$500,000
2025 – all remaining ARP funds		

Mr. Sultan moved to approve Resolution 2022-018 Disposition of American Rescue Plan Funds. Seconded by Mr. Abrams, the motion passed 5-0.

d. Board Input for the 2023-2027 Capital Improvement Plan

Mr. Erickson stated that Township staff will begin working on the next five-year Capital Improvement Plan

(CIP) in August. The current 2022-2026 plan is included in the digital agenda materials.

FOR YOUR INFORMATION -- The CIP is a tool that assists in planning for future projects by providing:

- A forum for proposing major capital projects and significant operational increases (e.g., staff increases or COG programmatic changes) several years in advance of implementation,
- A means for establishing a process for evaluating each project's justification and benefits,
- A process for prioritizing projects in the face of limited funding, and
- A platform for evaluating financing alternatives (i.e., bonds/loans, pay-as-you-go, or wait for a grant)

Staff requests that Board members provide input/guidance towards potential new projects or existing projects in the plan.

In prior discussions generated by the federal American Rescue Plan program, a list of projects and estimated costs were included with the [June Board agenda](#).

No formal action is required on this item. Board members are asked to please retain your hard copy of the CIP.

e. Council of Governments (COG) 2022 Program Plan and Capital Improvement Plan (CIP)

Mr. Erickson stated that the General Forum has referred the [2023 Centre Region COG Program Plan](#) (Item 7e.1 – digital only) and the [2023-27 Capital Improvement Plan](#) (Item 7e.2 – digital only) to the municipalities for review and comment. Additionally, the Board's representative on the COG Finance Committee has asked the other Board members to review the Park and Recreation agency's Food Truck business plan titled "Grub on the Go". (Item 7e.3R – revised Aug 11)

The COG Executive Director (see memo - Item 7e.5) has also provided the following additional documents:

- Bundled 2023 Personnel Requests (Presented to HR Committee in May) – all positions with justifications from study and total figures showing base salary used and benefits – Item 7e.6

7. ADMINISTRATION (Continued)

e. Council of Governments (COG) 2022 Program Plan and Capital Improvement Plan (CIP)

- Full Parks and Rec Staffing Study (Presented to HR Committee in April) – this includes the justifications in depth and suggested job description in bulleted points – Item 7e.7 (appendices available as a pdf upon request)
- Staffing Study Presentation – contains data regarding waiting lists, Benchmarking for FTEs, and the original study's recommendations – Item 7e.8
- Slide 1 – Shows the reduction in the study's recommendations for 2023 due to anticipated municipal budget constraints. (Identifies what is/isn't moving forward and if position is full-year, half-year, 2/3 year, etc.) – Item 7e.9
- Slide 3 – Showing the 37.6% reduction made with total request – Item 7e.10

The agenda update materials also include a matrix with questions posed by the COG Agencies and comments from the Township Manager and Supervisors Robb and Trevino. (see Item 7e.4R)

Other Board member should provide any further comments they may have for consideration by the Board as a whole. The COG has requested that the Board only submit 'consensus' comments.

Comments will be forwarded to the Executive Director for consideration by the Finance Committee on August 18th.

f. Council of Governments – Proposed Transfer of COG Building Ownership from Municipalities to COG

This item was discussed at the July 25th General Forum meeting and several elected officials requested an opportunity to review the matter further prior to taking any formal action. The proposed document entitled "Modification Agreement to Inter-Municipal Agreement 2001-1" is included as attachment Item 7f.1.

Background: The building occupied by the COG offices is owned jointly by Patton Township, Ferguson Township, Harris Township, College Township, Halfmoon Township, and State College Borough. The underlying property is owned by the Council of Governments. The municipalities each contributed funds for the construction of the building in 2002 and entered into the aforementioned "Centre Region Council of Governments Office Project Inter-Municipal Agreement 2001-1" as a means to "re-pay" themselves for the contributions and a Lease agreement was used as the instrument to obligate these "payments" from the COG to the municipalities for 25 years.

Special Comment: There was a lot of discussion at General Forum about what would happen if COG no longer occupied the building, and it was inferred there may be some sort of windfall revenue available for the municipalities. **Unfortunately, this would be incorrect.** If COG is no longer in the building, one of two things has happened:

COG is now occupying another location and has new occupancy costs, likely higher, the municipalities must cover, OR

COG has been dissolved and the municipalities are now providing former COG services in another manner and incurring new costs for such.

Options for the Board to consider: The Municipal Managers reviewed this issue and noted that a) there is no "wrong" answer to this matter, and b) the only people who can make this decision are the elected officials who make up the governing bodies of the both the municipalities and the General Forum. The Managers thought transferring the ownership to COG was the "better" solution.

7. ADMINISTRATION (Continued)

f. Council of Governments – Proposed Transfer of COG Building Ownership from Municipalities to COG (CONTINUED)

- Transfer ownership to COG in 2028. This would “streamline” somewhat the future decisions COG may make regarding facility needs.
- Maintain the Status Quo on ownership. Future decisions would require additional steps for approvals.

g. Voting Delegate for Pennsylvania Municipal League Summit in October

The Pennsylvania Municipal League (PML) requires each member organization to officially designate their voting delegate for their resolutions process and business meeting at the annual Summit.

Supervisors Robb and Whitman are scheduled to attend.

The Board agreed to appoint Ms. Robb as Township’s voting delegate and Mr. Pegher as alternate for PML Summit.

8. CONSENT AGENDA

The items included below are routine in nature and it is not anticipated that any will generate discussion or questions. The actual Consent Agenda with a brief description of each item is included with the agenda packet materials distributed to the Board and available to the public on-line and at the sign-in table. At the request of any Board member, any single item or all items on the Consent Agenda can be discussed and voted on separately. If no items are “pulled,” the Board should consider a motion for “approval of the Consent Agenda items as shown on the agenda.”

a. Public Safety – no items

b. Public Works Operations – no items

c. Engineering, Planning, & Zoning

1) Award Contract for Oak Wilt injections

The Zoning Officer solicited bids for the subject work in the Circleville Road / Scotia Road area and recommends award of the contract to Nature’s Canopy Tree and Shrub Care, Tyrone PA, for \$14,112.15 (See Item 8c1).

It is recommended that the Board approve the subject contract and authorize the Manager to execute same.

2) Zoning Officer Agreement with Halfmoon Township

Since 2015 Patton Township has provided Zoning Officer services to Halfmoon Township, who have requested an update to the agreement and approved the same at their July 28th meeting. While the prior agreement was between the Township Manager, the update is an agreement between the elected bodies which also requires a Resolution for an Intergovernmental Agreement.

It is recommended that the Board approve the enclosed Resolution 2022-021.

8. CONSENT AGENDA (CONTINUED)

c. Engineering, Planning, & Zoning (CONTINUED)

3) Resolution to Accept Easement for Traffic Signal at Penn Highlands Medical Center

Deferred to a future meeting

4) Approve Contract for Guiderail Replacement on Purdue Mountain Road

The Township Engineer solicited written quotations for the subject work that is being funded from a County Liquid Fuels Tax (LFT) grant. As a cost-saving measure the work will utilize used guide rail. Because the low quote was less than the 2022 bidding threshold, public bidding was not required. It is

Recommended that the Board award the contract to Chemung Supply, Carlisle PA, for \$21,174.60 (See Item 8c4)

It is recommended that the Board approve the subject contract and authorize the Manager to execute same.

5) Administration

1) Minutes: July 20, 2022

The draft minutes of the last Board meeting are included with agenda materials. Board members having questions or changes should contact the Township Manager prior to the meeting so revisions can be included in a supplemental distribution.

It is recommended that the Board approve the presented minutes.

2) Voucher Report

A copy of the July 2022 Voucher Report is enclosed. Board members having questions should contact the Township office prior to the meeting so the necessary information can be obtained.

It is recommended that the Board approve the Voucher Report.

3) Schedule Trick or Treat for October 31st

The General Forum voted based upon recommendations from the Centre Region Police Chiefs, the Centre Region Parks and Recreation Director, and the Executive Committee, that the Centre Region municipalities designate Monday, October 31, 2022, between the hours of 6:00 pm and 8:00 pm as Trick-or-Treat night, with the exception of Halfmoon Township where the hours will be 5:30 pm to 8:30 pm on that same day. It is additionally recommended that Tuesday, November 1, 2022, be designated as the rain date for Trick-or-Treat.

Additionally, the tentative date for the Annual Halloween Parade is Sunday, October 30, 2022.

It is recommended that the Board designate Trick or Treat Night as recommended.

e. Proclamations – no items

Mr. Magruder moved to approve the Consent Agenda. Seconded by Ms. Whitman, the motion passed 5-0.

9. MANAGER'S REPORT

Mr. Erickson reported on current matters, including:

- a. Correspondence (enclosed)
 - [1] Development Update
 - [2] Noise Complaint and resolution
 - [3] Update of PFAs from DEP
- b. Announcements
 - [1] Ghaner Drive Parklet Encroachment update
 - [2] CATA GO launching for Park Forest (enclosed)
- c. Upcoming Events
 - [1] Township Office Schedule
 - September 5, Labor Day, Offices Closed
 - [4] Oct 6 to 9 -- PA Municipal League Annual Summit, Pittsburgh
 - [5] Oct 25 -- PSATS Regional (North Central) Conference, Boalsburg

10. COMMITTEE REPORTS

Executive, July 19 – Robb (report enclosed – Item 10a.1)
Parks Governance, July 27 – Trevino
Human Resources, Aug 3 – Magruder
Land Use and Community Infrastructure, Aug 4 – Abrams
Climate Action and Sustainability, Aug 8 – Whitman
Public Safety, Aug 9 – Robb

Future Meetings:

Joint Finance and Facilities, Aug 18 – Trevino and Whitman
Executive, Aug 18 – Robb
Parks Governance, Aug 24 -- Trevino

- a. State College Borough Water Authority, (3rd Thursday) – report enclosed
- b. Centre Area Cable Consortium, as needed – Trevino (did not meet)
- c. Spring Creek Watershed Commission, – Mason – (report enclosed)
- d. Centre County Metropolitan Planning Org. – June 28, Abrams, Robb Alt.
- e. Centre County Airport Authority, (4th Thursday) Downsborough
- f. Solar Power Purchase Working Group, – Whitman, Pegher Alt. --

11. OTHER BUSINESS

Mr. Macgruder wanted to acknowledge the Inflation Reduction Act of 2022

Ms. Robb wanted to remind residents to be mindful and yield to emergency vehicles.

12. ADJOURN

Mr. Abrams moved to adjourn the July 20, 2022 Board of Supervisors Meeting at 7:55PM. Seconded by Ms. Whitman, the motion passed 5-0.